

SENATE BILL 2165

By Haile

AN ACT to amend Tennessee Code Annotated, Section 36-1-113 and Section 37-2-415, relative to foster parents.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 36-1-113(e), is amended by redesignating the current language as subdivision (e)(1) and adding the following new subdivision:

(2) If the child who is the subject of the petition is in the legal custody or guardianship of the department, then the department must provide a copy of the petition to the foster parent of the child, if the foster parent has served as the physical placement for the child for a period of nine (9) or more consecutive months. If the department is the petitioner, then the department must provide the required copy within seven (7) days of the filing of the petition. If another party is the petitioner, then the department must provide the required copy within seven (7) days of service upon the department.

SECTION 2. Tennessee Code Annotated, Section 37-2-415(a)(15), is amended by deleting the subdivision and substituting the following:

(15) The department shall provide all information regarding the child and the child's family background and health history, in a timely manner to the foster parent or parents. The foster parent or parents shall receive additional or necessary information, that is relevant to the care of the child, on an ongoing basis; provided, that confidential information received by the foster parents, including the copy of any termination of parental rights petition provided pursuant to § 36-1-113(e)(2), shall be maintained as

such by the foster parents, except as necessary to promote or protect the health and welfare of the child.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.